
2:00 PM - **LINE 7**

25-CIV-08668

WEI FANG CHEN, ET AL VS. DAKSH CHAPLOT, ET AL

WEI FANG CHEN
DAKSH CHAPLOT

ROBERT CHEASTY
SHAYNE L. WULTERIN

DEFENDANT DAKSH CHAPLOT'S MOTION TO STRIKE PORTIONS OF COMPLAINT

TENTATIVE RULING:

Defendant Daksh Chaplot's Motion to Strike Portions of the Complaint is **DENIED**.

Defendant moves to strike only page 3, ¶ 14(a)(2), that reads "punitive damages." (Defendant's Notice of Motion, at p. 2.) However, the Complaint contains an Exemplary Damages Attachment that sets forth the allegations in support of Plaintiffs' punitive damages. (Complaint, at p. 6.)

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322(a).) Further, if a pleading is challenged, a motion must state the specific portion challenged. (*Id.*, rule 3.1112(d)(4).) Thus, the court finds no point to striking the prayer for punitive damages at page 3 of the Complaint when the Exemplary Damages Attachment remains part of the Complaint. Defendant seems to concede this procedural defect by improperly asking in reply that the allegations in the Exemplary Damages Attachment also be stricken. (Defendant's Reply, at p. 11.) Because defendant did not include such a request in defendant's Notice, it is not properly before the court.

In addition, defendant's Memorandum fails to analyze the Complaint's allegations against defendant in support of the punitive damages claim. Instead, defendant's Memorandum focuses solely on the allegations against another defendant, Hertz Vehicles LLC. (See Defendant's Memorandum, at p. 5:1-4.)

Defendant also moves in the alternative that the court order an amendment making clear that punitive damages are sought solely against the DOE security guard and not against defendant Chaplot. However, the Complaint does not contain any allegations regarding a security guard, and defendant fails to address this argument in defendant's Memorandum.

Defendant is to file and serve an Answer to the Complaint within twenty (20) days of service of written notice of entry of the formal order by plaintiffs.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - **LINE 8**

25-CIV-09901

JANICE WILKINS VS. TAMMY SAMPEDRO, ET AL

JANICE WILKINS
TAMMY SAMPEDRO

KARMAN M. GUADAGNI
SARAH JANE TRUONG

PLAINTIFF'S MOTION FOR PREFERENTIAL TRIAL SETTING

TENTATIVE RULING:

Plaintiff Janice Wilkins' Motion for Preferential Trial Setting is **GRANTED**.

There is no dispute that plaintiff Janice Wilkins has met the standard set by subdivision (a) of Code of Civil Procedure, section 36 normally entitling a party to trial preference. As the plaintiff, Ms. Wilkins has a substantial interest in the action as a whole and the evidence submitted establishes that she is over seventy years of age and her health is such that a preference is necessary to prevent prejudicing her interest in the litigation. (Apr. 21, 2026 Declaration of Karman Guadagni, ¶¶ 3–5; Apr. 21, 2026 Declaration of Steven Fugaro, ¶¶ 1–3.)

Defendant LJ Care Services, Inc. (Firstlight) opposes the motion based on its desire to have its motion for summary judgment heard, and defendant Ernani Gabriel Navarro opposes based on his constitutional right against self-incrimination.

Firstlight has now filed its motion for summary judgment, currently set to be heard on January 6, 2027. Firstlight requests, in the event that the preference is granted, that the hearing on its motion be advanced to be heard before trial.

Given that the court grants the motion for preference, the trial date will be set for a date no more than 120 days after notice of entry of the formal order. (See Code Civ. Proc., § 36, subd. (f).) Courts are generally required to hear motions for summary judgment that are “timely filed,” and the motion was filed before any trial has been set. (*CFP BDA, LLC v. Superior Court* (2025) 112 Cal.App.5th 1006, 1011; accord, *Cole v. Superior Court* (2022) 87 Cal.App.5th 84, 88–89; *Sentry Ins. Co. v. Superior Court* (1989) 207 Cal.App.3d 526, 530.) Meanwhile, “trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 118.) It appears the earliest the pending motion for summary judgment may be heard is October 10, 2026.

Thus, Firstlight's alternative request to advance the hearing on the pending motion for summary judgment is granted and the hearing is advanced to October 28, 2026 at 2:00 in Department 28 at 800 North Humboldt Street, San Mateo, California.

As for Navarro's invocation of his Fifth Amended right, ordinarily, a civil trial court “has the authority and discretion” to delay discovery or trial or even stay a case before it “when the circumstances indicate that a stay is warranted[.]” (*People ex rel. Burns v. Wood* (2024) 103 Cal.App.5th 700, 712 (*Burns*); see Code Civ. Proc., §§ 128–130.) Pending civil and criminal
